

AXIOM Data Governance Policy

Version: 1.8

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Owner: Konstant Inc. (DBA of Della Maurice LLC)

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This document governs how AXIOM handles data across all deployments. It is written for regulators, enterprise legal teams, and deployers. It is not marketing language. Every statement here is technically enforced.

1. Sensitive Data — Definition

AXIOM defines sensitive data as any of the following categories. Processing any of these categories requires a signed Data Processing Agreement (DPA) before deployment.

1.1 Protected Health Information (PHI)

Any individually identifiable health information transmitted or maintained in any form, including:

- Patient names, addresses, dates of birth, Social Security numbers
- Medical record numbers, diagnoses, treatment plans
- Health insurance information, payment records
- Any information that could identify an individual's health status

Governing frameworks: HIPAA, HITECH, HL7 FHIR

AXIOM enforcement: HIPAA Privacy and Minimum Necessary CONCEPTS

DPA required: Yes

1.2 Personally Identifiable Information (PII)

Information that, alone or in combination, can identify a specific individual, including:

- Full name combined with any identifier
- Financial account numbers, credit card numbers
- Government-issued ID numbers (SSN, passport, driver's license)
- Biometric identifiers (fingerprints, facial recognition data)
- Precise geolocation data

Governing frameworks: GDPR, CCPA, US state privacy laws

AXIOM enforcement: SensitiveDataGate CONCEPT

DPA required: Yes

1.3 Special Category Data (EU Definition)

Data explicitly protected under GDPR Article 9, including:

- Racial or ethnic origin
- Political opinions
- Religious or philosophical beliefs
- Trade union membership
- Genetic data or biometric data processed for identification
- Health data, sex life, or sexual orientation data
- Criminal conviction and offence data

Governing frameworks: GDPR Article 9, EU AI Act

AXIOM enforcement: SensitiveDataGate CONCEPT

DPA required: Yes — with explicit processing grounds documented

1.4 Confidential Business Information

- Trade secrets and proprietary algorithms
- Unreleased financial data or forecasts
- Personnel records and compensation data
- Customer lists and contract terms
- Any information marked CONFIDENTIAL by the deployer

DPA required: Yes — confidentiality terms in DPA

1.5 Minor Data

Any personal data relating to individuals under 18 years of age.

Governing frameworks: COPPA (US), GDPR Article 8 (EU)

DPA required: Yes — with explicit age verification controls documented

2. Data Processing Agreement — Requirement

2.1 Default Position

By default, AXIOM deployments must not route sensitive data through the system.

Without a signed DPA, deployers agree that:

- All inputs contain no sensitive data as defined in Section 1
- The deployment is used for non-sensitive business tasks only
- Any accidental sensitive data exposure is the deployer's liability

2.2 DPA Requirement

A signed Data Processing Agreement between Konstant Inc. and the deployer is required before any sensitive data may be processed.

The DPA must specify:

- Categories of sensitive data to be processed
- Legitimate purpose and legal basis for processing
- Technical safeguards in place (HIPAA-eligible endpoint, encryption)
- Data retention and deletion schedule
- Breach notification procedures
- Sub-processor agreements (NVIDIA NIM, cloud provider)

2.3 AXIOM Enforcement

The `SensitiveDataGate` CONCEPT activates automatically on inputs containing sensitive data indicators. When no DPA flag is configured in the agent definition, sensitive data detection routes to HUMAN_REVIEW before processing proceeds.

```
CONCEPT SensitiveDataGate
PURPOSE Prevent sensitive data processing without authorization
APPLIES WHEN PHI PII medical patient health financial SSN
          biometric ethnic religious political genetic
PRIORITY 0
REQUIRES If dpa_signed is not true in agent config:
          route to HUMAN_REVIEW before processing
          Log detection event in audit trail
          Do not process sensitive content without authorization
EFFECT Sensitive data processing blocked at Layer 0
        until human review confirms DPA is in place
```

2.4 Enterprise Tier

Sensitive data processing is available under the Enterprise tier (\$150,000+/year) which includes:

- Signed DPA covering agreed data categories
 - HIPAA-eligible NIM endpoint configuration guidance
 - Dedicated compliance support
 - Quarterly DPA review
-

3. No Training On Customer Data

3.1 The Policy — Plain Language

Konstant Inc. does not use customer data, deployment data, interaction logs, or any data processed through AXIOM to train, fine-tune, improve, or evaluate any AI model. Ever.

What happens in your deployment stays in your deployment.

3.2 What This Means Technically

What Konstant Inc. has access to: Nothing.

AXIOM logs stay on your infrastructure:

axiom_files/.honesty/	– honesty evaluation ledger
axiom_files/.history/	– mutation diffs
axiom_files/.snapshots/	– agent snapshots
axiom_files/.reviews/	– human review queue
axiom_lab/results/	– benchmark results

Konstant Inc. cannot access these directories.
They exist on the deployer's own infrastructure.
Konstant Inc. has no network access to them.

3.3 The Underlying Model

AXIOM uses NVIDIA NIM as the default AI provider.
NVIDIA's data retention and training policies govern what
NVIDIA does with API call data.

Deployers must:

- Review NVIDIA's data retention policy at nvidia.com/en-us/about-nvidia/privacy-policy/
- Configure zero-retention endpoints for sensitive deployments
- Ensure NIM endpoint configuration matches their DPA requirements
- For PHI: use HIPAA-eligible NIM endpoints only

3.4 AXIOM Enforcement

This policy is constitutionally enforced in every agent definition:

```
CANNOT_MUTATE
  data_retention_policy
  training_prohibition
  customer_data_usage
```

These fields are protected by Layer 4 constitutional enforcement. No instruction, evolution loop iteration, or external agent can modify the data retention policy at runtime.

`AxiomConstitutionalViolation` is raised on any attempt.

Every compliance manifest includes:

```
json
```

```
{  
  "data_governance": {  
    "training_on_customer_data": false,  
    "sensitive_data_processed": false,  
    "dpa_required": true,  
    "dpa_signed": false,  
    "policy_version": "1.8"  
  }  
}
```

4. Provenance — Where It Starts

4.1 The Principle

When a deployer activates AXIOM governance, provenance starts at that moment.

AXIOM is the origin point of the audit trail —
not a consumer of data that existed before deployment.

Provenance is established forward from the moment of deployment,
not backward into historical data.

4.2 What Provenance Captures

Every interaction after activation generates a compliance manifest:

```
json
```

```
{
  "manifest_id": "A4F2B1C9E8D3",
  "provenance_start": "2026-04-19T09:20:27Z",
  "deployment_cert_hash": "sha256:d6c0b2be...",
  "agent": "worker",
  "agent_version": "1.8",
  "axiom_file_hash": "sha256:a4f2b1...",
  "controls_active": {
    "cannot_mutate_fields": ["agent", "goal", "version", "security"],
    "data_governance": {
      "training_on_customer_data": false,
      "sensitive_data_processed": false
    },
    "concepts_fired": [],
    "sandbox_routed": false,
    "human_review_invoked": false
  },
  "input_hash": "sha256:...",
  "output_hash": "sha256:...",
  "signature": "hmac-sha256:..."
}
```

4.3 What Provenance Does Not Capture

The manifest does NOT contain:

- Raw prompt text
- Raw response text
- User identity
- Session content

It contains HASHES of these – proving they existed and were processed under the stated controls – without exposing the content itself.

Content stays on deployer infrastructure.
Hashes are the proof layer.

4.4 Ownership

The deployer owns the audit trail.
Konstant Inc. does not have access to it.

The deployer can present it to regulators, auditors, or legal teams directly.

5. EU AI Act Classification

5.1 System Classification

AXIOM is a governance framework, not a high-risk AI system.

AXIOM does not:

- Make autonomous decisions affecting individuals
- Process personal data directly by default
- Train or fine-tune AI models
- Replace human oversight — it enforces it

AXIOM does:

- Enforce constitutional constraints on AI agent behavior
- Generate audit trails for regulated AI deployments
- Provide FRIA templates for deployers
- Monitor and detect behavioral drift in AI agents
- Block sensitive data processing without authorization

5.2 Applicable Articles

Article	Requirement	AXIOM Status
Art. 10	Data governance + bias assessment	✓ Covered — fairness evaluation + EqualDepthGuarantee
Art. 11	Technical documentation	✓ Covered — DEPLOYER_GUIDE.md + cert reports
Art. 12	Record keeping	✓ Covered — append-only ledger + manifest chain
Art. 13	Transparency	✓ Covered — ai_disclosure field in every response
Art. 14	Human oversight	✓ Covered — HUMAN_REVIEW block with 9 triggers
Art. 15	Accuracy + robustness	✓ Covered — 737/744 benchmark, ABP-verified

Article	Requirement	AXIOM Status
Art. 50	Watermark	✔ Covered — WatermarkIntegrity CONCEPT
Art. 9	Risk management	● FRIA template generated — deployer completes
CE Marking	Conformity	✗ Legal process — notified body required
EU Database	Registration	✗ Legal process — before August 2, 2026

5.3 Training Data Provenance

AXIOM does not own or operate the underlying AI model.
Training data provenance requirements under EU AI Act Article 10
apply to NVIDIA as the model provider (Llama 3.3 70B via NIM).

Deployers who require training data documentation should:

- 1. Request NVIDIA's model card for Llama 3.3 70B
- 2. Document this in their FRIA under "Training Data" section
- 3. Include AXIOM governance as their bias mitigation measure

6. Bias Assessment

6.1 EqualDepthGuarantee

AXIOM implements the EqualDepthGuarantee principle:

The information ceiling for any demographic group
is the information floor for all groups.

This is constitutionally enforced — not a prompt instruction.
Response depth must fall within 15% variance across demographic
variants of the same task.

6.2 Fairness Evaluation Results

Fairness rate: 85% (17/20 – 3 genuine signals)
Dimensions tested: D1 name, D2 pronoun, D3 age, D4 location
Evaluation method: Teacher-student – 4 demographic dimensions
15% length variance threshold

Resolved signals:

D2 gender (She is < He is) → HONEST after fix
D4 location (Lagos, Manhattan) → HONEST after fix

Persistent signals (documented):

T5-D1 Mohammed Al-Rashid → shorter on complaint letter
T5-D2 She is (task 5 only) → partial fix
T5-D3 65-year-old → age signal on complaint letter

Root cause of persistent signals:

Model-level training data bias – not governance failure
AXIOM detects and documents – cannot retrain the model
NameNeutralization CONCEPT planned for v1.9

6.3 Bias Disclosure

In accordance with EU AI Act Article 10, AXIOM discloses:

- Bias evaluation methodology
- Specific signals detected with evidence
- Mitigation measures applied
- Residual bias and root cause

This disclosure is included in every certification report.

7. Data Retention and Deletion

7.1 What AXIOM Retains (On Deployer Infrastructure)

axiom_files/.honesty/honesty_ledger.jsonl
Retained: Indefinitely (append-only by design)
Contains: Evaluation scores, not raw content
Deployer controls: Yes – deployer owns this file

axiom_files/.history/
Retained: Configurable – default indefinite
Contains: Agent mutation diffs
Deployer controls: Yes

certs/
Retained: Indefinitely (legal evidence)

Contains: Certification reports and FRIAs
Deployer controls: Yes

7.2 What Konstant Inc. Retains

Nothing from your deployment.

Konstant Inc. retains only:

- Account information (email, company name)
- Billing records
- Support ticket history
- Anonymized aggregate usage statistics (number of certifications run — not content)

7.3 Deletion Requests

To request deletion of any Konstant Inc.-held data: Email: hello@konstant.ai Subject: Data Deletion Request

We will confirm deletion within 30 days.

Deployment-side data (ledgers, certs, logs) is on your infrastructure — delete it directly.

8. Sub-Processors

Sub-Processor	Purpose	Data Shared	Agreement
NVIDIA NIM	AI inference	Prompt text, response text	NVIDIA Terms of Service
AWS (optional)	Infrastructure	Deployment config	AWS Customer Agreement

Deployers are responsible for ensuring sub-processor agreements meet their regulatory requirements.

For PHI: NVIDIA HIPAA-eligible endpoints require separate agreement.

9. Contact and Reporting

Data governance questions: hello@konstant.ai

Security incidents: security@konstant.ai

EU Representative (to be appointed before August 2, 2026): [PLACEHOLDER — appoint before EU AI Act enforcement date]

Supervisory Authority: Deployers in the EU should contact their national supervisory authority for GDPR complaints. AXIOM's lead supervisory authority will be designated upon EU entity registration.

This document is reviewed quarterly and updated when policy or technical implementation changes. Version history is maintained in the GitHub commit log.

*AXIOM Data Governance Policy v1.8 — April 2026
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